

TENTATIVE RULINGS

Date: September 24, 2026

#	Case Name	Tentative
1.	30-2023-01363497 Yang vs. California TD Specialists	1. Motion to Set Aside/Vacate Default Defendant Prado Investments, LLC (“Prado Investments”) moves for an order setting aside default entered against it on 3/16/26 by plaintiff Pi-Fang Yang, Trustee of the YPF Trust (“Plaintiff”). On 9/2/26, after default was entered, Plaintiff filed a Second Amended Complaint (SAC) to add a cause of action for fraud, deceit, and concealment against all defendants. This new cause of action is a substantive change to Plaintiff’s pleading. “When amendments to a complaint contain substantive changes . . . a defaulting defendant against whom the court has not yet entered judgment has the right to appear in the action to answer the amended complaint.” (<i>Crestmar Owners Assn. v. Stapakis</i> (2007) 157 Cal.App.4th 1223, 1230-1231.) Because Prado Investments must be granted the right to appear in the action and file a responsive pleading to the SAC, the Motion to Set Aside Default is GRANTED. Moving party to give notice.
2.	30-2024-01396485 Quezada vs. Ford Motor Company	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Terminating Sanctions <u>Motion for Summary Judgment/Adjudication</u> Defendants Ford Motor Company and Ken Grody Ford (“Defendants”) move for summary judgment as to all five causes of action alleged in the Complaint, which include the: (1) first cause of action for violation of Civil Code section 1793.2(d) against Defendant Ford, (2) second cause of action for violation of Civil Code section 1793.2(b) against Defendant Ford, (3) third cause of action for violation of Civil Code section 1793.2(a)(3) against Defendant Ford, (4) fourth cause of action for breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5 against Defendant Ford, and (5) fifth cause of action for negligent repair against Defendant Ken Grody. Plaintiffs Linda Quezada and Poo’s Playhouse, LLC (“Plaintiffs”) oppose the motion. A. STANDING First, Defendants argue that Plaintiff Linda Quezada does not have standing to sue Defendants because she did not purchase the vehicle and is not a party to the contract. Defendants argue that only Plaintiff Poo’s Playhouse, LLC has standing to sue since it is the party that purchased the vehicle at issue. Plaintiff Linda Quezada does not dispute that Plaintiff Poo’s Playhouse, LLC “entered into the Retail Installment Sale Contract with Ken Grody Ford on March 16, 2022.” Still, Plaintiff argues that she